
MEMORANDUM

TO: Mayor Marian Orr, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: February 6, 2019
SUBJECT: Consideration of Bid #S-13-19 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., Cheyenne, Wyoming, for the Christensen Road Overpass & Corridor project.

Two (2) bidders responded to this bid, and the bid tabulation is attached. Bids were received from Reiman Corp., Cheyenne, Wyoming (\$10,557,155.01), and S & S Builders, LLC, Cheyenne, Wyoming (\$11,674,108.74).

The bids were reviewed by Amy Allen, Molly Bennett and Sam Berta, of the City of Cheyenne Engineering Department. Their recommendation is to accept the low bid from Reiman Corp. of Cheyenne Wyoming, in the amount of \$10,557,155.01. The Engineer's Estimate for the project was \$13,264,828.90.

The bids were also reviewed by HDR Engineering, and their letter of concurrence for the award of the project to Reiman Corp. is attached.

Funding: Specific Purpose Sales Tax Funding (6th Penny)

BID TABULATION
CITY OF CHEYENNE - PURCHASING
BID NUMBER: S-13-19
Bid Opening: February 1, 2019

CHRISTENSEN RAILROAD OVERPASS & CORRIDOR PROJECT

Bidder Name & Location	Signed	Bid Guarantee	Addendum (4)	Base Bid	Bid Schedule B	Base Bid + Bid Schedule B	Bid Alternate - Water System	Base Bid + Bid Schedule B + Bid Alternate Total
Reiman Corp, Cheyenne, Wyoming	YES	YES	YES	\$ 10,280,290.71	\$ 115,384.30	\$ 10,395,675.01	\$ 161,480.00	\$ 10,557,155.01
S & S Builders, LLC, Cheyenne, Wyoming	YES	YES	YES	\$ 11,353,361.94	\$ 162,958.45	\$ 11,516,320.39	\$ 157,788.35	\$ 11,674,108.74

INQUIRIES REGARDING THIS BID SHOULD BE DIRECTED TO:
CITY OF CHEYENNE, PURCHASING MANAGER, PHONE: (307) 773-1045, EMAIL: TBARTTEL BORT@CHEYENNECITY.ORG
MUNICIPAL BUILDING, 2101 O'NEIL AVE, ROOM 309, CHEYENNE, WYOMING 82001

TJB



Christensen Railroad Overpass and Corridor Project

RE: Bid Award Recommendation

Dear Mrs. Allen,

HDR Engineering, Inc. has reviewed the bids submitted for the above referenced project.

There were two (2) responsive bids submitted on February 2nd, 2019; those bids were from Reiman Corporation and S&S Builders LLC. All bids were submitted on time and had the required Bid Bond. All bids were submitted by a resident contractor and included a Residency Certificate. There were four (4) Addenda which were acknowledged by all bidders. During our bid evaluation, there were no discrepancies found with the bid requirements as outlined in the Instructions to Bidders.

The bids for the project ranked as follows:

Total Bid Price

(Base Bid + Bid Schedule B + Bid Alternate Water System)

The Engineer's Estimate was	\$ 13,264,828.90
The low bidder was Reiman Corporation at:	\$ 10,557,155.01
The second low bidder was S&S Builders LLC at:	\$ 11,674,108.74

The results indicate the low bid was approximately 11.9 % below the Engineer's Estimate. The Engineer's Estimate was assembled by utilizing the Engineer's Estimate provided by the original project designer; and extending the estimated unit prices for work items on Bid Schedule B. The bid opening results generally indicate amounts slightly lower than we had anticipated. Bids received were very competitive; and the primary source of separation between the two (2) bidders was hard surfacing (i.e. paving items) and bridge (i.e. structure) related items. There are no concerns regarding competitiveness and the total number of bidders; as the results indicate, both responsive bidders were well below the anticipated Total Project Cost.

Reiman Corp. has been contacted and is comfortable with their bid. They have worked on many past projects for the City of Cheyenne and have performed a high of quality work in the past. Both HDR Engineering, Inc. and Reimann Corp. have a wealth of similar project experience and have dedicated industry professionals to successfully deliver this project for the City of Cheyenne.

Based on the bid evaluation herein HDR recommends that the City of Cheyenne award the project **Base Bid + Bid Schedule B + Bid Alternate Water System** for a Total Bid of \$ 10,557,155.01 to Reiman Corporation. Furthermore, HDR has reviewed the list of subcontractors and material suppliers and can report that we have worked with and/or received positive feedback on all of the major subcontractors and suppliers that have been identified in the bid package.

If you have any questions or comments concerning this recommendation, please call.

Very Respectfully,

Todd Mattson

Todd Mattson, P.E.
Project Manager

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. S-13-19

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and Reiman Corp., hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Christensen Railroad Overpass & Corridor Project**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: Addendum #1, dated November 21, 2018, Addendum #2, dated December 3, 2018, Addendum #3, dated January 15, 2019, Addendum #4, dated January 25, 2019.

ARTICLE 2. RESPONSIBLE DESIGNER FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by October 31, 2020. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the Contractor for the performance of the Contract in current funds, the sum of Ten Million, Five Hundred Fifty-Seven Thousand, One Hundred Fifty-Five Dollars and One Cent (\$10,557,155.01). In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least one week prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

- b. The City will withhold ten percent (10%) of the dollar value of the work completed for a minimum of ten (10) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §15-1-113(h). Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

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|-----------------------------|---|
| 1. This Agreement; | 6. General Conditions and Insurance; |
| 2. Addenda; | 7. Supplemental Conditions; |
| 3. Invitation for Bids; | 8. Part IV Forms & Notices; |
| 4. Instructions to Bidders; | 9. Specifications and Special Provisions; and |
| 5. Signed Bid Proposal; | 10. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kris Jones, City Clerk

Marian J. Orr, Mayor

Reiman Corp._____.

Contractor

By

Title

Notary or Corporation Secretary:

SUBSCRIBED AND SWORN TO BEFORE ME

this ____ day of _____, ____

by _____

My Commission expires: _____

P.O. Box 1007
Cheyenne, Wyoming 82003